



Authority Support Required

1 assets are awaiting your Letters of Authority to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)

[View Asset List](#) →

Strategic Assessment

SECURE & NOTIFY
DEATH TO FILING

Petition & Authority

OBTAINING POWERS
AFTER PETITION FILED

Asset Discovery

INVENTORY & APPRAISAL
AFTER LETTERS ISSUED

Creditor Claims

NOTICE & PRIORITY
AFTER LETTERS ISSUED

Asset Liquidation

TRANSFER & SELL
MONTH 6–12

Strategic Assessment

Secure & Notify • Death to Filing

Petition & Authority

Obtaining Powers • After Petition Filed

Asset Discovery

Inventory & Appraisal • After Letters Issued

Creditor Claims

Notice & Priority • After Letters Issued

Asset Liquidation

Transfer & Sell • Month 6–12

Final Distribution

Estate In Closing • Month 6–12



Strategic Assessment

CURRENT

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Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Publish Notice to Creditors (CA — Starts Claims Timing)

Check Deadline

LOCKED

In California, publication of the required notice is a standard step and commonly drives creditor claims timing. Use the court-accepted notice format and follow local publication requirements for your county.



Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

[Upload Photos](#)



Identify Minor Beneficiaries

OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

- ☐
- Initial Property Protection**
Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

- ☐
- Notify Social Security Administration**
Report the death to stop benefit payments and prevent overpayment recovery.

Death Certificate Obtained

Report Death to SSA

- ☐
- Cancel Credit Cards & Subscriptions**
Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

- ☐
- Manage Utilities**
Review decedent's utility accounts (electricity, water, gas).

- ☐
- Conduct Genealogical Search** OPTIONAL
If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

- ☐
- Locate Important Documents (Intestate)** OPTIONAL
Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents

- ☐
- Establish Estate Financial Account**
Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

Death Certificate Obtained

Upload Letters of Authority

Upload EIN

- ☐
- Managed Payment of Immediate Bills**
Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

- ☐
- Obtain EIN for the Estate**
Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.

Upload IRS Form SS-4

Apply for EIN Online (IRS)

- ☐
- File IRS Form 56 (Notice of Fiduciary)**
Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.

Upload IRS Form 56

Upload Certified Letters of Authority

Download IRS Form 56

- ☐
- Confirm U.S. Legal Representative**
Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

Verify Notarization Rules (Apostille)

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court

Check HCCH Member States

UPLOAD MISCELLANEOUS

Court Compliance & Eligibility

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Validate Venue and Jurisdiction

Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.

Screen Fiduciary Eligibility

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

Validate Interested Parties

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

Identify Protected Persons representation

Screen the interested party list for minors, incapacitated adults, or unknown heirs that require a court-appointed Guardian ad Litem (GAL).

Prepare Required Notices and Waivers

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

Evaluate Need for Temporary Authority

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

Calculate Court Filing Fees

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

Compile Required Court Form Packet

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

UPLOAD MISCELLANEOUS

Petition & Authority

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1 ASSET

File Petition for Administration

Submit the administration petition to the court to open the estate case and request appointment as Administrator (since there is no Will).

Death Certificate Obtained



Upload Petition Form

Pay Court Filing Fee

LOCKED

Pay the required court filing fee to process the petition. Fees vary by estate value.

☐ **Submit Oath and Designation** LOCKED

Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

☐ **Obtain Citation from Court** LOCKED

Receive the issued Citation from the court, which sets the hearing date and commands interested parties to appear.

☐ **Serve Citation on Interested Parties** LOCKED

Serve the Citation to all required heirs and interested parties according to strict statutory rules.

☐ **Attend Administration Hearing** LOCKED

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

☐ **Obtain Letters of Administration** LOCKED

Once the court approves the petition, obtain certified copies of your Letters of Administration.

☐ **File Small Estate Affidavit**

For estates under threshold, use this shortcut to bypass court probate.

Death Certificate Obtained



Upload Affidavit Form

☐ **File Spousal Property Petition**

Request court order to transfer property to surviving spouse without full probate.

Death Certificate Obtained



Upload Petition Form

Start Spousal Path

☐ **Give Notice of Hearing** OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the petition.

☐ **Obtain Spousal Property Order** OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

☐ **Issue Certificate of Trust** OPTIONAL

Formalize successor trustee authority for trust-held assets.

Upload Trust Agreement

☐ **Obtain Business Operating Authority**

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ **File Petition for Guardian Ad Litem** OPTIONAL LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

Death Certificate Obtained



☐ **Obtain Guardian Ad Litem Order** OPTIONAL LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.

☐ **Avoid Bond Cost** 🔒 LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.

 **UPLOAD MISCELLANEOUS**

☐ **Asset Discovery**

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 Letters of Administration required

Upload Documents →

☐ **Creditor Claims**

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☐ **FIDUCIARY RISK: Statutory Debt Priority**

Assess creditor claims and potential debts under the statutory priority rules applicable in your jurisdiction (often including administration expenses and taxes before unsecured claims).

☐ **Publish Notice to Creditors (CA — Starts Claims Timing)** 📅 Check Deadline 🔒 LOCKED

In California, publication of the required notice is a standard step and commonly drives creditor claims timing. Use the court-accepted notice format and follow local publication requirements for your county.

☐ **Mail Notice to Known Creditors (As Applicable)** 🔒 LOCKED

Notify known creditors as appropriate and retain proof of mailing/notice. Requirements can vary by county and case posture; confirm local practice.

☐ **International Fiduciary: W-8BEN/W-8CE Assessment**

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

☐ **International Fiduciary: ITIN Acquisition Protocol**

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maximum backup withholding on distribution.

☐ **Evaluate Estate Solvency**

Compare total estate assets to total liabilities, taxes, and administration/funeral expenses to determine whether the estate appears solvent or insolvent.

☐ **Wait for 4-Month Claim Period** 🔒 LOCKED

Creditors have 4 months from publication of the creditor notice to file claims against the estate.

☐ **Review Submitted Claims**

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ **Document Claim Evaluation & Decision**

Evaluate each creditor claim and document your decision (allowed, partially allowed, disputed/rejected) with supporting rationale and evidence. Claims handling procedures vary by case type.

☐ **File Formal Rejection of Claim (CA)** LOCKED

If a claim is invalid or unsupported, follow California's procedure to reject the claim and retain proof of delivery. Confirm any statutory deadlines and required notice language.

☐ **Pay Approved Claims (By Statutory Priority)** LOCKED

Pay valid debts in the statutory priority order applicable in your jurisdiction (commonly including administration costs, taxes, secured debts, then unsecured claims). Document and retain receipts.

☐ **File Proof of Creditor Notice (CA)** LOCKED

Retain and submit proof of publication and any required mailed notices per local court practice. Confirm county-specific proof requirements.

 **UPLOAD MISCELLANEOUS**

☐ **Asset Liquidation**

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☐ **Obtain Court Approval for Minor Distributions**

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ **Present Letters to All Institutions**

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

 **Death Certificate Obtained**



 **Upload Letters of Authority**

☐ **Transfer Financial Accounts** LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ **Prepare Notice of Proposed Action**

If you have independent administration authority, you must notify heirs of your intent to sell real property.

 **Upload Notice of Proposed Action Form**

 **About Notices of Proposed Action**

Authorization

☐ **Wait for 15-Day Objection Period** LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

☐ **File Petition to Confirm Sale**

If you do NOT have independent administration authority, or if someone objects, you must petition the court to confirm the sale of real property.

 **Upload Petition to Confirm Sale Form**

 **About Sales Confirmation**

File Petition

☐ **Obtain Sale Confirmation Order** LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

☐ **Complete Property Sale & Close Escrow** LOCKED

Finalize the sale of real estate through IAEA or court-confirmed process, sign closing documents, and receive sale proceeds into the estate account.

☐ **File Form 1041 (Fiduciary Income Tax)**

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ **Issue Schedule K-1 to Beneficiaries**

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ **Pay Final Taxes** 📅 Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 Upload All Tax Documents

☐ **Prepare Final Accounting** 🔒 LOCKED

Document all income, expenses, and distributions for court review.

 **UPLOAD MISCELLANEOUS**

☐ **Final Distribution**

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 Complete liquidation first

View Assets →

 **ExpectedEstate is not a law firm.** We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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